

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX-----X
TYDAIZA BRADLEY and SAMANTHA BELL,

Index No.

Plaintiffs,

Plaintiffs designate

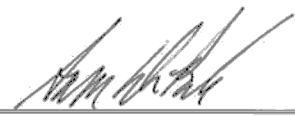
Bronx County as the place of trial

-against-

The basis of the venue is where the
injury occurredTHE CITY OF NEW YORK, YESSANIA PENA,
individually and officially in their capacities as New York
City police officers and JOHN or JANE DOE 1-10,
individually and officially in their capacities as New York
City police officers,SUMMONSDefendants.
-----X

TO THE ABOVE-NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiffs' Attorney(s) within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after the service is complete if this summons is not personally delivered to you within the State of New York); and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Bayside, New York
January 7, 2020

SIM & DEPAOLA, LLP
By: Samuel C. DePaola, Esq.
Attorneys for Plaintiff(s)
42-40 Bell Boulevard - Suite 201
Bayside, New York 11361
T: (718) 281-0400

TO: CORPORATION COUNSEL OF THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

Police Officer YESSANIA PENA of the 49th Precinct
Shield#:19933 Tax ID#: 964206
2121 Eastchester Rd,
Bronx, New York 10461

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.

-----X
TYDAIZA BRADLEY and SAMANTHA BELL,

Plaintiffs,

VERIFIED COMPLAINT

-against-

THE CITY OF NEW YORK, YESSANIA PENA,
individually and officially in their capacities as New York
City police officers and JOHN or JANE DOE 1-10,
individually and officially in their capacities as New York
City police officers,

Defendants.
-----X

Plaintiffs, TYDAIZA BRADLEY and SAMANTHA BELL, by their attorneys, Sim & DePaola, LLP, for their complaint against the above Defendants, City of New York, individually and officially in their capacities as New York City police officers, YESSANIA PENA and John and/or Jane Doe 1-10, alleges and states as follows:

1. This is a civil rights action in which Plaintiffs seek relief through 42 U.S.C. §§ 1983 and 1988 for the violations of their civil rights protected by Constitution of the United States and the Constitution and laws of the State of New York.
2. Plaintiffs' claims arise from a January 13, 2019 incident, in which Defendants, acting under color of state law, unlawfully arrested and detained Plaintiffs. As a direct and proximate result, Plaintiffs TYDAIZA BRADLEY and SAMANTHA BELL were unlawfully detained within the New York City Police Department, within the jurisdictional confines of Bronx County, New York. TYDAIZA BRADLEY and SAMANTHA BELL charged with Criminal Trespassing in the second and third degree, and trespassing. Plaintiffs were deprived of their liberty for approximately twenty

(20) hours and suffered serious physical and emotional injuries. They were maliciously prosecuted, until their dismissal, on January 14, 2019.

3. Plaintiffs have served a notice of claim, which has been deemed timely served by this Court.

4. Thirty days have elapsed since the filing of this notice, and this matter has not been settled or otherwise disposed of.

5. Plaintiffs have complied with municipal Defendant's request for an oral examination pursuant to Section 50-H of the New York General Municipal Law and/or the Public Authorities Law and/or no such request was made within the applicable period.

6. This action and associated claims have been timely commenced within all applicable statutes of limitations.

7. Plaintiffs seek monetary damages (compensatory and punitive) against Defendants, as well as an award of costs and attorneys' fees, and such other and further relief as the Court may deem just and proper.

PARTIES

8. Plaintiff, TYDAIZA BRADLEY, resides at 1 South Broadway, Hastings-on-Hudson, New York 10706.

9. Plaintiff, SAMANTHA BELL, resides at 1372 Washington Avenue, Apartment 19B, Bronx, New York 10025.

10. Defendant, City of New York ("City"), is a municipal corporation organized under the laws of the State of New York.

11. At all times relevant hereto, Defendant City, acting through the New York City Police Department ("NYPD"), was responsible for the policy, practice, supervision, implementation, and

conduct of all NYPD matters and was responsible for the appointment, training, supervision, discipline and retention and conduct of all NYPD personnel, including police officers, detectives and supervisory officers as well as the individually named Defendants herein.

12. In addition, at all times here relevant, Defendant City was responsible for enforcing the rules of the NYPD, and for ensuring that the NYPD personnel obey the laws of the United States and of the State of New York.

13. Defendant YESSSENIA PENA was, at all times here relevant, a police officer employed by the NYPD and as such was acting in the capacity of an agent, servant and employee of the City of New York. Defendant PENA was, at the time relevant herein, a police officer under Shield # 19933 and Tax ID # 964206 in the NYPD, located at the 49th Precinct, 2121 Eastchester Road, Bronx, New York 10461. Defendant PENA is being sued in her individual and official capacities.

14. At all times relevant Defendants, including PENA, and John and/or Jane Doe 1-10, were detectives, supervisors, policy makers and/or officials employed by the NYPD. At this time, Plaintiffs do not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

15. At all times relevant Defendants, including PENA, and John and/or Jane Doe 1-10, were police officers, detectives, supervisors, policy makers and/or officials employed by the NYPD.

16. At this time, Plaintiffs do not know the true names or tax registry numbers of Defendants John and/or Jane Doe 1-10, as such knowledge is in the exclusive possession of the Defendants.

17. At all times relevant herein, Defendants, including PENA, and John and/or Jane Doe 1-10, were acting as agents, servants and employees of the City of New York, and/or the NYPD. Defendants, including PENA, and John and/or Jane Doe 1-10, are being sued in their individual and official capacities.

18. At all times here mentioned, Defendants, including PENA, and John and/or Jane Doe 1-10 were acting under color of state law, to wit, under color of the statutes, ordinances, regulations, policies, customs and usages of the City and State of New York.

FACTUAL CHARGES

19. On January 13, 2019, at approximately 8:48 P.M., Plaintiffs were in the vicinity of 1651 Hunt Avenue between Baker Avenue and Van Nest Avenue, in the County of Bronx, State of New York.

20. On said date, time and location, TYDAIZA BRADELY and SAMANTHA BELL were hanging out at their friend's house on 1651 Hunt Avenue.

21. On said date, time and location, Plaintiffs were in the basement of their friend's apartment.

22. On said date, time and location, Plaintiffs were hanging out with their friends, charging their phones, and listening to music in the basement.

23. On said date, time and location, Plaintiffs were not in control of the premises of 1651 Hunt Avenue.

24. On said date, time and location, Plaintiffs were not told that the basement was considered off limits. Plaintiffs believed that they were legally invited to be in the basement.

25. Plaintiffs were not aware of any alleged broken wood panel, ripped off NO TRESPASSING sign, or any closed gate that would block them from entering the basement.

26. Plaintiffs were not warned prior to this date of incident by any tenant, custodial worker, or landlord of the above-mentioned building, that Plaintiffs were not allowed to be on the premises, specifically in the basement area.

27. Defendants, including PENA, and John and/or Jane Doe 1-10, arrived to the above-mentioned location in regards to a "trespassing" call.

28. Defendants, including PENA, and John and/or Jane Doe 1-10, entered the premises and moved towards the basement area.

29. Defendants, including PENA, and John and /or Jane Doe 1-10, proceeded downstairs shouting at Plaintiffs TYDAIZA BRADLEY and SAMANTHA BELL to freeze.

30. Defendants, including PENA, and John and/or Jane Doe 1-10, aimed their tasers at Plaintiffs, which caused the Plaintiffs to fear being tasered.

31. Defendants, including, PENA, and John and/or Jane Doe 1-10, ordered plaintiffs TYDAIZA BRADLEY AND SAMANTHA BELL to face the wall, announced that Plaintiffs were getting arrested, and failed to announce the reason the Plaintiffs were being detained.

32. Defendants, including, PENA, and John and/or Jane Doe 1-10, unlawfully searched plaintiffs.

33. Plaintiffs were rear handcuffed by Defendants, including PENA, and John and/or Jane Doe 1-10.

34. After the unlawful search, Plaintiffs were brought outside and placed in a marked police vehicle.

35. TYDAIZA BRADLEY and SAMANTHA BELL were not criminally trespassing to any degree, trespassing in any degree, and had not committed any crime or violation of the law.

36. TYDAIZA BRADLEY and SAMANTHA BELL had multiple assaults and batteries, committed to their person, by Defendants, including PENA, and John and/or Jane Doe 1-10, including but not limited to, being placed in handcuffs too tightly.

37. At all relevant times, Defendants, including PENA, and John and/or Jane Doe 1-10, intentionally provided said false or fabricated information that would be likely to influence a prosecutor employed by the District Attorney's Office to wrongfully prosecute the Plaintiffs,

namely that Plaintiffs committed Criminal Trespassing in the second and third degree as well as Trespassing, and that the Plaintiffs were observed to be unlawfully arrested and detained, so that a criminal prosecution would be initiated against Plaintiff.

38. Defendants, including PENA, and John and/or Jane Doe 1-10, fabricated the fact that Plaintiffs committed Criminal Trespassing second and third degree as well as Trespassing, so that they could falsely implicate Plaintiffs of various crimes that Defendants knew him to be innocent of.

39. At no time did Plaintiffs commit any form of trespassing to any degree.

40. Defendants', including PENA, and John and/or Jane Doe 1-10, knowingly and intentionally made false statements and allegations against the Plaintiffs and thus, Plaintiffs were falsely arrested, unlawfully stunned, and charged with assault in the second degree that Defendants knew to be false since Plaintiffs did not commit any assault.

41. Defendants, including PENA, and John and/or Jane Doe 1-10 arrested and initiated a criminal prosecution against the Plaintiffs, not because Defendants believed Plaintiffs to be guilty of any crime or violation of the law, but because of their desire to compel Plaintiffs, who were unlawfully arrested and detained even though they committed no crimes or violations of law.

42. At all times relevant hereto, Defendants, including PENA, and John or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when defendants observed others doing so, all in furtherance of Plaintiffs' wrongful arrest and subsequent malicious criminal prosecution.

43. Defendants, including PENA, and John and/or Jane Doe 1-10, further ensured that Plaintiffs would be falsely inculpated amidst the unlawful arrest.

44. Plaintiffs TYDAIZA BRADLEY and SAMANTHA BELL were taken to the 49th precinct and were criminally processed.

45. Upon arrival at the 49th Precinct, Plaintiffs possessions were kept and they were placed in a holding cell for over five (5) hours.

46. Plaintiffs' were then taken out of the holding cell and transferred to Central Bookings

47. Upon arrival at Central Bookings, Plaintiffs were photographed and fingerprinted by, or at the direction of Defendants, including PENA, and John and/or Jane Doe 1-10.

48. At no point did the Defendants, including PENA, and John and/or Jane Doe 1-10, ever observe Plaintiffs committing any of the alleged crimes as well as criminal Trespassing in the second and third degree, and trespassing.

49. At no point did any witnesses tell the Defendants, including PENA, and John and/or Jane Doe 1-10, that the Plaintiffs TYDAIZA BRADLEY and SAMANTHA BELL committed any crime or violation of the law.

50. Defendants, including PENA, and John and/or Jane Doe 1-10 did not possess probable cause or other justification for the arrest or seizure of Plaintiffs' person.

51. Defendants, including PENA, and John or Jane Doe 1-10, never possessed probable cause to believe a prosecution would succeed against Plaintiffs, or that Plaintiffs were guilty of any crime, as Defendants PENA, and John or Jane Doe 1-10 were fully aware that any evidence against Plaintiffs were either fraudulent or fabricated, including the observations provided by Defendant PENA, in which Plaintiffs were falsely accused of resisting arrest, possession of controlled substances at said location.

52. While Plaintiffs were unlawfully detained, Defendants, including PENA, and John and/or Jane Doe 1-10, acted with malice, conveyed the aforementioned false, misleading and incomplete information to prosecutors in order to have Plaintiff prosecuted for assault in the second degree.

53. Defendants, including PENA, and John and/or Jane Doe 1-10, intentionally, knowingly and falsely made said allegations to conceal their otherwise illegal, tortious and sinister acts, namely the unlawful arrest of TYDAIZA BRADLEY and SAMANTHA BELL without probable cause.

54. Defendants, including PENA, and John and/or Jane Doe 1-10, suppressed evidence and engaged in conduct undertaken in bad faith, including the fabrication of false evidence and the gratuitous use of excessive force against the Plaintiffs.

55. At all times relevant hereto, Defendants, including PENA, and John and/or Jane Doe 1-10, were involved in the decision to arrest Plaintiff without probable cause or failed to intervene when they observed others arresting Plaintiffs without probable cause or using excessive force to effectuate their arrest.

56. At all times relevant hereto, Defendants, including PENA, and John and/or Jane Doe 1-10, engaged in fraud, perjury, the suppression of evidence and other actions conducted in bad faith, or failed to intervene when Defendants PENA, and John and/or Jane Doe 1-10 observed others doing so, all in furtherance of Plaintiffs' wrongful arrest and subsequent malicious attempt at a criminal prosecution.

57. Plaintiffs assert that the Defendants, including PENA and John and/or Jane Doe 1-10, who violated Plaintiffs' civil rights, are part of a larger pattern and practice of similar misconduct, which is so widespread, pervasive and consistent throughout the NYPD, and the City of New York that the commission such constitutionally violative behavior has become tantamount to an official

policy or custom within the NYPD, and City of New York or, at the very least, conclusive evidence that the City, NYPD have either tacitly approved of such egregious wrongdoings or that they have become deliberately indifferent to the civil rights of those who may come into contact their police officers.

58. The individually named Defendants herein, as well as other officers serving in the employ of the NYPD, and City of New York, have blatantly, shamelessly, consistently and repeatedly engaged in conduct violative of the civil rights guaranteed and protected by Constitution of the United States, in addition to the laws and Constitution of the State of New York, all without incurring any ramifications for such misconduct and, ostensibly, with the full and complete blessing of the NYPD, the City of New York and their respective policymakers and supervisors.

59. In a report by *NBC Channel 4 News, New York*, entitled “Ex NYPD Sergeant Accused of Assaulting Man at Homeless Shelter, Stomping on His Head More Than 10 Times,” by Jonathan Dienst and Joe Valiquette, horrific allegations against a former NYPD police sergeant were detailed, including his use of extreme and excessive force, as well as his falsifying evidence that was forwarded to prosecutors. The former NYPD sergeant is no longer employed with the NYPD and his criminal case is presently being prosecuted by the United States Attorney’s Office for the Southern District of New York. Another article from *citylimits.org*, entitled “CityViews: Is NYPD Oversight Really making Homeless Shelters Safer,” by Daniel Castillo, discusses how the NYPD police officers have begun to jointly enforce the law within many homeless shelters, but how such added policing has only worsened the already crime riddled areas. It also details how ongoing problems have only deteriorated since the newly enacted joint jurisdiction.

60. *The New York Times*, as well as numerous other reputable journalistic enterprises, have reported on the widespread corruption within the NYPD, and City of New York, particularly the

incredibly disconcerting proclivity of many NYPD officers to engage in the fabrication or misrepresentation of subject matters that are materially relevant to criminal prosecutions, including the complete fabrication of arrest evidence and witnesses.. Also detailed, is the NYPD's obstinate refusal to effectuate corrective or preventive measures to combat the inevitable recurrence of such misdeeds, and perhaps most troubling, the NYPD's alarming tendency to, instead, reward and promote these officers, including those who were inculcated via some incontrovertible form of evidence.

61. On March 18, 2018, *The New York Times* published an explosive article, entitled "Promotions, Not Punishments for Officers Accused of Lying," written by Joseph Goldstein. Mr. Goldstein shines a light on the multitude of flaws within the CCRB and the NYPD, highlighting the fact that the substantiation of a claim against an officer will invariably rely on the presence of incontrovertible proof against the officer. Due to the rarity availability of this type of evidence, an alarmingly small percentage of officer misconduct claims are substantiated. The CCRB is further handicapped by a terribly designed system that requires evidence of a virtually indisputable nature to substantiate any claim against an officer. The article also details the NYPD's persistent reluctance to investigate or discipline officers who lie and even posits that this reluctance is a significant cause of the lying pandemic within the NYPD. The article references various officers and detectives who were the subject of credible accusations relating to the officers' intentionally false statements, with some allegations coming from federal and state judges.

62. On September 12, 2019, *The New York Times* published another article by Joseph Goldstein, entitled "Officers Said They Smelled Pot. The Judge Called Them Liars." Unsurprisingly, this article dealt with the unusually high frequency of officers using the odor of marijuana to excuse a search that conspicuously does not result in the recovery of any marijuana.

It should not require an article in *The New York Times* to call attention to such patently disingenuous tactics, but has become necessary for a variety of reasons, including the NYPD's failure to correct such behavior, the willingness of prosecutors and judges to credit the lying officers and the increasing rate of occurrence.

63. On April 24, 2019, *The New York Times* published an article, entitled "Detective's Lies Sent Three People to Prison, Prosecutors Charge," by Sean Piccolo, detailing the lies of NYPD Second Grade Detective Joseph Franco and how those lies resulted in the imprisonment of at least three innocent people. The article described how Det. Franco lied about observing drug transactions on at least three separate occasions, lies that were only uncovered through contradictory video evidence. Det. Franco's lies resulted in the innocent individuals each being sentenced to prison terms in excess of one-year.

64. Other articles include: (i) "Testifying' by Police: A Stubborn Problem.," by Joseph Goldstein, *The New York Times*, March 18, 2018; (ii) "New York Detective Charged with Faking Lineup Results," by Joseph Goldstein, *The New York Times*, February 17, 2018; (iii) "He Excelled as a Detective, Until Prosecutors Stopped Believing Him," by Joseph Goldstein, *The New York Times*, October 17, 2017; (iv) "Review Board Notes Rise in New York Police Officers' False Statement," by J. David Goodman, *The New York Times*, May 14, 2015; (v) "In Brooklyn Gun Cases, Suspicion Turns to the Police," by Stephanie Clifford, *The New York Times*, December 11, 2014; (vi) "Detective is Found Guilty of Planting Drugs," by Tim Stelloh, *The New York Times*, November 1, 2011; and (vii) "The Drugs? They Came From the Police," by Jim Dwyer, *The New York Times*, October 13, 2011.

65. The NYPD has a longstanding and ignominious record of failing to discipline its officers, or even entertaining allegations of wrongdoing against them. On June 26, 2019, *The New York*

Times published an article, entitled “2,495 Reports of Police Bias. Not One Was Deemed Valid by the N.Y.P.D.” This article reported that within the last five (5) years, almost 2,500 separate individuals have filed formal complaints with the NYPD alleging that an officer acted with bias toward them, with not a single one being substantiated by the NYPD. Such a finding is plainly incredible and obviously the result of deliberately poor or nonexistent investigatory protocols. The report further impugned the NYPD’s commitment to combat the prejudices and the biases exhibited by many of its officers.

66. Upon information and belief, the NYPD, the City of New York, and their respective policymakers, officials or supervisors have imposed, tacitly approved or acquiesced to policies, customs, or patterns and practices within the NYPD that resulted in plaintiffs’ arrest without probable cause.

67. Upon information and belief, the NYPD, the City of New York, and their respective policymakers or supervisors have failed to provide adequate training regarding the identification of probable cause, reasonable suspicion or the appropriate amount of force to be used.

68. Defendants’ actions, pursuant to Plaintiffs’ underlying arrest, which occurred without even the semblance of probable cause, were so blatantly violative of Plaintiffs’ civil rights that the tacit approval of identical or similar acts by the policymakers or supervisors of the NYPD, and the City of New York, as well as their deliberate indifference towards the rights of any individuals who may come into contact with Defendants, should be inferred, because such flagrant deprivations of constitutionally protected rights could not and would not occur without the tacit approval or deliberate indifference regarding the commission of such violations by the policymakers or supervisors of the NYPD, and City of New York.

69. Upon information and belief, further details and facts, relating to the unlawful policies, customs or patterns and practices of the NYPD, City of New York and their respective policymakers, supervisors, police officers or employees, will become known after the completion of discovery, as such information is presently within the exclusive possession of Defendants, the NYPD, and City of New York.

70. Upon information and belief, the personnel files, records and disciplinary histories of the officer Defendants will reveal a history of Constitutional violations indicative of Defendant City's knowledge that the individual officer Defendants were unfit for employment as NYPD officers, or for employment in general, and that the probability of the individually named Defendants committing similar violations in the future was extremely high.

71. Upon information and belief, said personnel files, records and disciplinary histories will conclusively show that the City, and the NYPD were fully aware of Defendants' past constitutional violations, the unacceptably high probability for the recurrence of similar transgressions, the unreasonably dangerous situations that were likely to result from their hiring or retention, as well as their unsuitability for employment as law enforcement officers, or for employment in general, and that the NYPD, and City of New York failed to engage in any preventive or corrective action intended to diminish the likelihood of recurrence for such violations, which is tantamount to the City's tacit approval of such misconduct or the City's deliberate indifference towards the civil rights of those who may interact with its employees, including Blair, John or Jane Doe 1-10.

72. As a direct and proximate result of the acts of Defendants, including the City, whose including PENA, John and/or Jane Doe 1-10, Plaintiff suffered the following injuries and damages: violations of their rights pursuant to the Fourth and Fourteenth Amendment of the United States Constitution, violations of New York State law, physical injury, physical pain and suffering,

emotional trauma and suffering, including fear, embarrassment, humiliation, emotional distress, frustration, extreme inconvenience, anxiety, loss of liberty and harm to reputation.

FIRST CAUSE OF ACTION

False Arrest and False Imprisonment Under
New York State Law

73. Plaintiffs' re-allege and re-aver Paragraph 1 through 72 of this Complaint as if fully set forth herein.

74. Defendants subjected Plaintiffs to false arrest, false imprisonment, and deprivation of liberty without probable cause.

75. Plaintiffs were conscious of their confinement.

76. Plaintiffs did not consent to their confinement.

77. Plaintiffs' arrest and false imprisonment were not otherwise privileged.

78. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

79. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment Under
42 U.S.C. § 1983 Against Individual Defendants

80. Plaintiffs' re-allege and re-aver Paragraphs 1 through 79 of this Complaint as if fully set forth herein.

81. The Defendants violated the Fourth and Fourteenth Amendments to the U.S. Constitution by wrongfully and illegally arresting, detaining and imprisoning Plaintiffs.

82. The wrongful, unjustifiable, and unlawful apprehension, arrest, detention, and imprisonment of Plaintiffs were carried out without a valid warrant, without Plaintiffs' consent, and without probable cause or reasonable suspicion.

83. At all relevant times, Defendants acted forcibly in apprehending, arresting, and imprisoning Plaintiffs.

84. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRD CAUSE OF ACTION

Assault and Battery Under New York State Law

85. Plaintiffs re-allege and re-aver Paragraph 1 through 84 of this Complaint as if fully set forth herein.

86. Defendants made Plaintiffs fear for their physical well-being and safety and placed them in apprehension of immediate harmful and/or offensive touching.

87. Defendants engaged in and subjected plaintiffs to immediate harmful and/or offensive touching and battered them without their consent.

88. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

89. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

FOURTH CAUSE OF ACTION

Excessive Force Under 42 U.S.C. § 1983 Against Individual Defendants

90. Plaintiffs re-allege and re-aver Paragraphs 1 through 89 of this Complaint as if fully set forth herein.

91. The Defendants violated Plaintiffs' rights under the Fourth and Fourteenth Amendments, because they used unreasonable force without Plaintiff's consent.

92. Defendants engaged in and subjected the Plaintiffs to immediate harmful and/or offensive touching and battered them without their consent

93. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

FIFTH CAUSE OF ACTION

Malicious Prosecution Under
New York State Law

94. Plaintiffs re-allege and re-aver Paragraph 1 through 93 of this Complaint as if fully set forth herein.

95. Defendants initiated the prosecution against Plaintiffs.

96. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

97. Defendants acted with malice.

98. The prosecution was terminated in Plaintiffs' favor when all criminal charges were dismissed and sealed.

99. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

100. As a direct and proximate result of this breach, Plaintiffs sustained the damages hereinbefore alleged.

SIXTH CAUSE OF ACTION

Malicious Prosecution Under
42 U.S.C. § 1983 Against Individual Defendants

101. Plaintiffs re-allege and re-aver Paragraphs 1 through 100, of this Complaint as if fully set forth herein.

102. Defendants initiated the prosecution against Plaintiffs.

103. Defendants lacked probable cause to believe Plaintiffs were guilty or that a prosecution would succeed.

104. Defendants acted with malice.

105. The prosecution was terminated in Plaintiffs' favor when all criminal charges were dismissed and sealed.

106. Accordingly, Defendants violated Plaintiffs' Fourth Amendment rights.

107. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

SEVENTH CAUSE OF ACTION

Denial of Right to Fair Trial Under
42 U.S.C. § 1983 Against Individual Defendants

108. Plaintiffs re-allege and re-aver Paragraphs 1 through 107 of this Complaint as if fully set forth herein.

109. Defendants fabricated false evidence to be used against Plaintiffs that were likely to influence a jury's decision and forwarded said false information to the District Attorney's Office.

110. Defendants' actions deprived Plaintiffs of their right to a fair trial and caused post-arraignment restrictions to be imposed on their liberty and freedom of movement, including their post-arraignment detainment.

111. Accordingly, Defendants violated Plaintiffs' right to fair trial, pursuant to the Sixth and Fourteenth Amendments to United States Constitution, Article I, Sections 1, 2 and 6 of the New York State Constitution, as well Article II, Section 12, of the New York State Civil Rights Law.

112. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

EIGHTH CAUSE OF ACTION

Failure to Intervene Under
New York State Law

113. Plaintiffs re-allege and re-aver Paragraphs 1 through 112 of this Complaint as if fully set forth herein.

114. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct, observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

115. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

116. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

NINTH CAUSE OF ACTION

Failure to Intervene Under
42 U.S.C. § 1983 Against Individual Defendants

117. Plaintiffs re-allege and re-aver Paragraphs 1 through 116 of this Complaint as if fully set forth herein.

118. Those Defendants that were present but did not actively participate in the aforementioned unlawful conduct observed such conduct, had an opportunity to prevent such conduct, had a duty to intervene and prevent such conduct and failed to intervene.

119. Accordingly, the Defendants who failed to intervene violated the Fourth and Fourteenth Amendments.

120. As a direct and proximate result of this unlawful conduct, Plaintiff sustained the damages hereinbefore alleged.

TENTH CAUSE OF ACTION
Malicious Abuse of Process Under
New York State Law

121. Plaintiffs re-allege and re-aver Paragraph 1 through 120 of this Complaint as if fully set forth herein.

122. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

123. Defendants had no excuse or justification to forcibly detain or initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

124. Defendants intended to inflict substantial harm upon Plaintiffs.

125. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

126. Defendant City, as employer of the individual Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

127. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

ELEVENTH CAUSE OF ACTION
Malicious Abuse of Process Under
42 U.S.C. § 1983 Against Individual Defendants

128. Plaintiffs re-allege and re-aver Paragraph 1 through 127 of this Complaint as if fully set forth herein.

129. Defendants arrested, detained and caused a criminal prosecution to be initiated against Plaintiff to compel the compliance or forbearance of some act.

130. Defendants had no excuse or justification to forcibly detain and initiate a prosecution against Plaintiffs, especially with the absence of any cognizable probable cause.

131. Defendants intended to inflict substantial harm upon Plaintiffs.

132. Defendants acted to achieve a collateral purpose, beyond or in addition to Plaintiffs' criminal prosecution.

133. Defendants' actions deprived Plaintiffs of their constitutional rights, under the Sixth and Fourteenth Amendments to the United States Constitution.

134. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

TWELFTH CAUSE OF ACTION

Negligent Hiring, Training, Retention and Supervision Under
New York State Law

135. Plaintiffs re-allege and re-aver Paragraph 1 through 134 of this Complaint as if fully set forth herein.

136. Defendant City owed a duty of care to Plaintiffs to adequately hire, train, retain and supervise its employee Defendants.

137. Defendant City breached those duties of care.

138. Defendant City placed Defendants in a position where they could inflict foreseeable harm.

139. Defendant City knew or should have known of its employee Defendants' propensity for violating the individual rights granted under the United States Constitution and the laws of the State of New York, prior to the injuries incurred by Plaintiffs.

140. Defendant City failed to take reasonable measures in hiring, training, retaining and supervising its employee Defendants that would have prevented the aforesaid injuries to Plaintiffs.

141. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

THIRTEENTH CAUSE OF ACTION

Municipal “*Monell*” Liability Under
42 U.S.C. § 1983 Against Defendant City

142. Plaintiffs re-allege and re-aver Paragraph 1 through 141 of this Complaint as if fully set forth herein.

143. Defendant City maintained a policy or custom that caused Plaintiffs to be deprived of their civil rights, tacitly approved of such violative conduct or was deliberately indifferent toward the potential exposure of individuals, such as plaintiff, to such violative behavior.

144. Defendant City’s employee police officers have engaged in an illegal pattern and practice of misconduct, so consistent and widespread that it constitutes a custom or usage, of which a supervisor or policymaker must have been aware of.

145. Defendant City, its policymakers and supervisors failed to provide adequate training or supervision to their subordinates, to such an extent that is tantamount to the City’s deliberate indifference toward the rights of those who may come into contact with defendant City’s employees.

146. Defendant City’s employees engaged in such egregious and flagrant violations of plaintiff’s Constitutional rights that the need for enhanced training or supervision is obvious and equates to a display of deliberate indifference by defendant City and its policymakers toward the rights of individuals, who may come into contact with defendant City’s employees.

147. Defendant City’s repeated refusal or failure to install or apply corrective or preventive measures constitutes the tacit approval of such violative behavior or a deliberate indifference to the rights of those who may be affected by such behavior.

148. Defendant City's conduct caused the violation of plaintiff's civil rights enumerated within the Constitution of the United States, pursuant to the Fourth, Sixth and Fourteenth Amendments.

149. As a direct and proximate result of this unlawful conduct, Plaintiffs sustained the damages hereinbefore alleged.

WHEREFORE, Plaintiffs respectfully request judgment against Defendants, jointly and severally, as follows:

- a) On the First Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- b) On the Second Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- c) On the Third Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- d) On the Fourth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- e) On the Fifth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- f) On the Sixth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- g) On the Seventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- h) On the Eighth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- i) On the Ninth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- j) On the Tenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- k) On the Eleventh Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- l) On the Twelfth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;

- m) On the Thirteenth Cause of Action, in a sum of money having a present value which exceeds the jurisdictional limits of all lower courts which would otherwise have jurisdiction of this matter;
- n) Awarding Plaintiff punitive damages in an amount to be determined by a jury on all causes of action set forth herein;
- o) Awarding Plaintiffs reasonable attorneys' fees and costs pursuant to 42 U.S.C. § 1988;

Together with the costs and disbursements of this action.

JURY DEMAND

Plaintiff demands a trial by jury.

Dated: January 7, 2020

Respectfully submitted,



SIM & DEPAOLA, LLP

By: Samuel C. DePaola, Esq.

Attorneys for Plaintiff

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ATTORNEY VERIFICATION

I, Samuel C. DePaola, an attorney admitted to practice in the courts of New York State, state that I am an partner with the firm of **SIM & DEPAOLA, LLP**, the attorneys of record for Plaintiff in the within action; I have read the foregoing and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief, and as to those matters I believe it to be true. The reason this verification is made by me and not by Plaintiff, is because Plaintiff resides outside the county where deponent maintains his office. I affirm that the foregoing statements are true, under the penalties of perjury.

Dated: Bayside, New York
January 7, 2020



SAMUEL C. DEPAOLA, ESQ.

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:

TYDAIZA BRADLEY and SAMANTHA BELL,

Plaintiffs,

-against-

THE CITY OF NEW YORK, YESSANIA PENA,
individually and officially in their capacities as New York
City police officers and JOHN or JANE DOE 1-10,
individually and officially in their capacities as New York
City police officers,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SIM & DEPAOLA, LLP
BY: Peter Sim, Esq.
Attorney for Plaintiff
42-40 Bell Boulevard
Bayside, NY 11361
Tel. (718) 281-0400

To: CORPORATION COUNSEL OF NEW YORK

Attorney(s) for Defendants

Service of a copy of the within is hereby admitted.
Dated

Attorney(s) for